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EU AI Act

Notified Bodies

Assessing AI System Conformity

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AI & Partners defends and extends the digital rights of users at risk around the world. By combining direct technical support, comprehensive policy engagement, global advocacy, grassroots professional services, regulatory interventions, and participating in industry groups such as AI Commons, we fight for fundamental rights in the artificial intelligence age.

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Who Are We

AI That You Can Trust

Why Us?

Stay on the right side of history. At AI & Partners, we believe AI should unlock potential—not cause harm. We’ve seen the fear and fallout when teams lose control of AI, but also the trust and innovation that follow when it’s handled responsibly. That’s why we exist: to help you build AI you can trust and stand behind—for the long run.

80%

of AI systems
are unknown

What Do We Do?

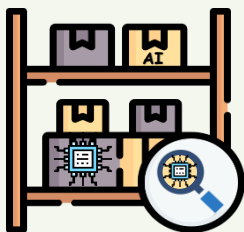
We enable safe AI usage—for your organization and your clients. Unknown AI adoption leads to confusion, risk, and reputational damage. We help you take control with tools to identify, monitor, and govern all AI systems—so you're not reacting to AI, you're leading it.



How Do We Do It?

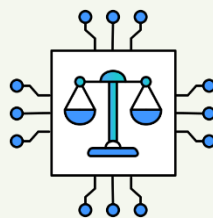
Do you know what AI systems you have? Identify all known and unknown AI systems (algorithms, LLMs, prompts, and models) from all internal and external AI vendors, automated by generating your inventory. Overall, 80% of AI inventory is unknown to our clients.

How do you guarantee ongoing safe AI use? Continuously monitor deployed AI systems for performance drift, anomalies or failures, real-world impacts, and emerging risks (e.g. data poisoning). Any malfunction of an AI system has severe implications for organisations (e.g. inability to assess online misinformation that leads to widespread public mistrust), so monitoring becomes a matter of urgency.



AI Discovery & AI Inventory

Automatically detect all AI systems, including models, algorithms, and prompts, and maintain a live, always-updated register for full visibility and compliance.



Responsible AI

Embed fairness, transparency, and control into every stage of AI use—aligning with the EU AI Act and building ‘Trustworthy-by-Design’.



Model Monitoring

Continuously track your AI models after deployment to detect drift, bias, or failure—so you stay in control and prevent harm before it happens.



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Introduction

As the EU Artificial Intelligence Act (AI Act) moves toward full implementation, the role of notified bodies has become central to ensuring the conformity of high-risk AI systems. These independent organizations are designated by EU Member States to assess whether AI products meet the necessary legal requirements before they are introduced to the market. This process is vital for ensuring that AI systems adhere to the strict safety, ethical, and regulatory standards set by the AI Act.

This report serves as a comprehensive guide for AI firms, regulators, and users on the critical role of notified bodies in assessing AI system conformity under the AI Act. It provides detailed insights into how notified bodies operate, the processes they follow, and the key responsibilities they uphold in ensuring AI systems comply with EU regulations. Drawing from lessons in related sectors and regulatory frameworks, the report also offers best practices for harmonizing notified body activities across the EU.

As the EU seeks to create a robust and transparent AI governance system, notified bodies play an essential part in the overall compliance ecosystem, helping to build trust in AI technologies. This report identifies how notified bodies can facilitate compliance, provide technical assessments, and ensure the safe, transparent, and lawful deployment of AI systems across sectors, from healthcare to finance.

This document will also explore the roles and responsibilities of AI firms, manufacturers, distributors, and other key stakeholders in the conformity assessment process, shedding light on how they can work together with notified bodies to ensure AI systems meet all relevant EU standards.

Whether you are a startup, a regulatory authority, or an organization seeking clarity on AI system compliance, this report provides a structured reference for understanding the role of notified bodies and navigating the compliance landscape within the EU AI Act.

Note: It is important to note that, as of September 2025, no notified bodies (NBs) have yet been formally designated under the AI Act. This means that while the legal framework anticipates and requires their role, the system for AI conformity assessment is not yet operational in practice. Until designation takes place, manufacturers and providers may face uncertainty in navigating compliance pathways, and enforcement of AI-specific conformity assessments remains largely theoretical rather than applied. This gap highlights both the early stage of implementation and the evolving regulatory landscape for AI within the EU.

Best regards,

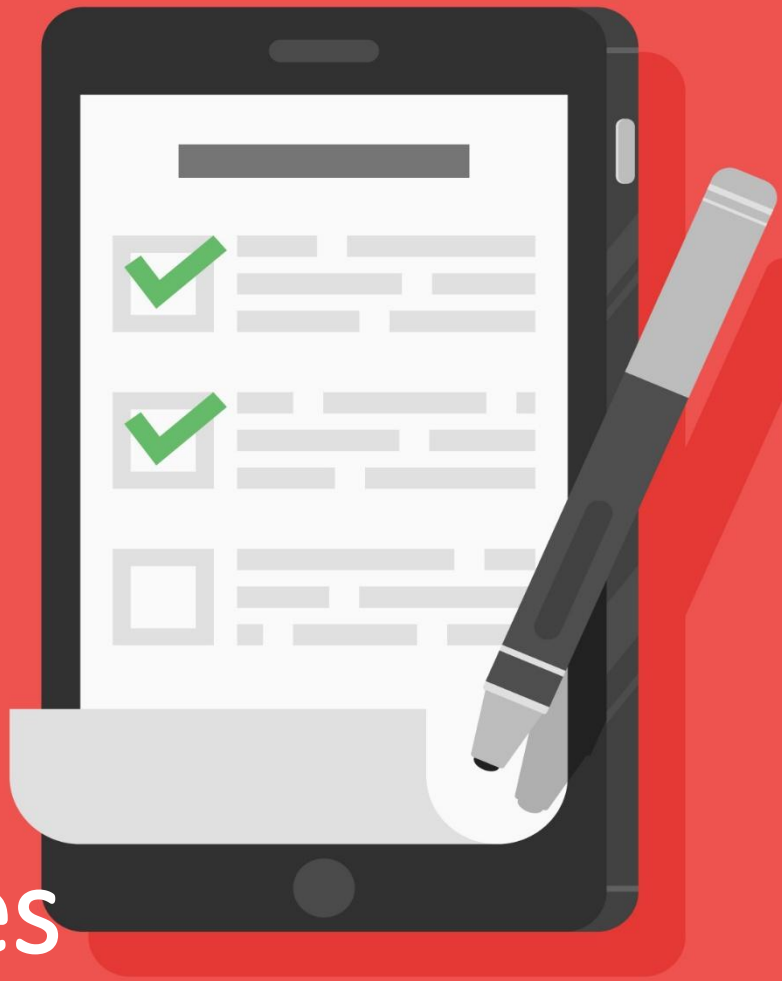
Sean Musch

Founder/CEO

AI & Partners



Key questions
being asked
about
Notified Bodies





1. What is a notified body?

A notified body is an organization designated by an EU Member State to assess the conformity of certain products before they are placed on the market. These bodies carry out tasks related to conformity assessment procedures set out in the applicable legislation when a third-party intervention is required. They ensure that products meet the necessary requirements, allowing manufacturers to affix the CE marking and sell their products within the EU. The European Commission publishes a list of such notified bodies.

2. Why are notified bodies necessary?

Notified bodies are essential to ensure that products entering the EU market comply with stringent safety, health, and environmental protection requirements. They provide an independent assessment of product conformity, which is crucial for maintaining consumer trust and ensuring a level playing field for manufacturers. By verifying that products meet EU standards, notified bodies help prevent the circulation of non-compliant products, thereby safeguarding public interests and supporting the integrity of the single market.

3. How is a notified body designated?

A notified body is designated by an EU Member State's competent authority, which assesses the organization's competence, impartiality, and ability to perform conformity assessments. The designation process involves evaluating the body's technical capabilities, quality management systems, and adherence to relevant standards. Once designated, the body is notified to the European Commission and other Member States, and its details are published in the NANDO (New Approach Notified and Designated Organisations) database.

4. What products require assessment by a notified body?

Products that pose higher risks to health, safety, or the environment typically require assessment by a notified body. These include medical devices, construction products, personal protective equipment, machinery, and certain electrical equipment. The specific requirements depend on the applicable EU legislation governing the product category. Manufacturers must consult the relevant directives or regulations to determine whether their products require third-party conformity assessment by a notified body.

5. What is the role of a notified body in the CE marking process?

In the CE marking process, a notified body assesses whether a product meets the essential requirements outlined in the relevant EU legislation. This assessment may involve reviewing technical documentation, conducting tests, and auditing the manufacturer's quality management system. If the product complies, the notified body issues a certificate of conformity, allowing the manufacturer to affix the CE marking and place the product on the EU market. The CE marking indicates that the product meets EU safety, health, and environmental protection requirements.

6. How can I verify if a notified body is authorized for a specific product?

You can verify a notified body's authorization by consulting the NANDO database, maintained by the European Commission. This online resource provides up-to-date information on notified bodies, including their identification numbers, contact details, and the specific directives or regulations for which they are designated. By searching the database, you can confirm whether a notified body is authorized to perform conformity assessments for your product category.





7. What standards must notified bodies adhere to?

Notified bodies must comply with relevant international standards, such as ISO/IEC 17065 for product certification bodies, to ensure competence, impartiality, and consistent operation. They are also required to follow the specific conformity assessment procedures outlined in the applicable EU legislation for each product category. Compliance with these standards is monitored through regular assessments by the designating authorities to maintain the integrity of the conformity assessment process.

8. Can a notified body's designation be withdrawn?

Yes, a notified body's designation can be suspended or withdrawn by the designating Member State if the body no longer meets the required criteria, such as competence, impartiality, or compliance with relevant standards. Withdrawal may also occur if the body fails to fulfill its obligations under the applicable EU legislation. Such actions are communicated to the European Commission and other Member States, and the NANDO database is updated accordingly.

9. What is the difference between a notified body and a market surveillance authority?

A notified body is responsible for assessing product conformity before the product is placed on the market, ensuring it meets the applicable EU requirements. In contrast, a market surveillance authority monitors products already on the market to ensure ongoing compliance and to identify non-compliant products. While notified bodies conduct pre-market assessments, market surveillance authorities enforce compliance post-market, taking corrective actions when necessary to protect consumers and the environment.



10. How do notified bodies interact with manufacturers?

Notified bodies work closely with manufacturers during the conformity assessment process. Manufacturers submit technical documentation and, if required, product samples for evaluation. The notified body reviews the information, conducts necessary tests or audits, and determines whether the product meets the essential requirements. Throughout this process, notified bodies provide guidance on compliance but must maintain impartiality and cannot offer consultancy services that could compromise their independence.

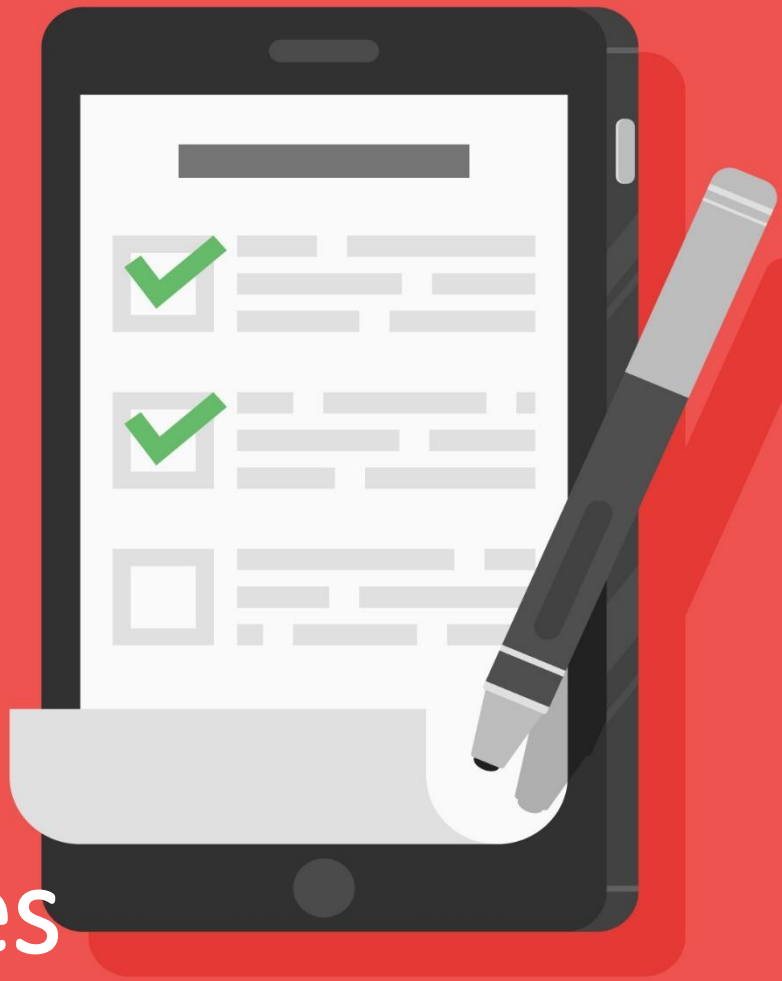
11. What about AI Liability issues?

As the AI Liability Directive is still in the process of being developed, no assumptions or details are provided regarding its potential interaction with notified bodies at this time.

12. How are ethics & fundamental rights assessments carried out?

As the European Commission is set to release further guidelines for high-risk AI systems in Q1 2026, the practical implementation of ethics and fundamental rights in AI certification will become clearer.

Key questions
being asked
about
Notified Bodies





1. Definition and Role

Definition and Role



Responsibilities and Operating Principles



NANDO Website and List of Notified Bodies



Supervision and Verification



What does it entail?

Why is it needed?

How does it function?

☐ EU member states designate independent organizations, called notified bodies, to assess products—especially high-risk ones like AI systems—against EU regulations.

☐ Notified bodies conduct impartial third-party evaluations to ensure products meet health, safety, environmental, and performance standards before market placement.

☐ Their assessments may involve document reviews, quality system audits, and physical testing, depending on the product's risk level and classification

* Notified bodies ensure products entering the EU market meet strict regulations, protecting consumers, users, and the environment.

* Without their oversight, unsafe, substandard, or misleading products could spread, posing risks to public safety.

* In high-risk sectors like medical devices and AI, independent assessments are crucial to prevent harm and build trust in new technologies.

* Notified bodies conduct a legally required conformity assessment process to rigorously evaluate products, including those powered by advanced AI, ensuring compliance with EU regulations such as the AI Act or the Machinery Directive.

* Their evaluation includes reviewing design documentation, conducting tests, inspecting production facilities, and ensuring risk management procedures are in place.

* If the product meets all criteria, the notified body issues a certificate of conformity, allowing the manufacturer to place the CE marking and sell the product in the EU.



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2. Responsibilities and Operating Principles

Definition and Role



Responsibilities and Operating Principles



NANDO Website and List of Notified Bodies



Supervision and Verification



What does it entail?

Why is it needed?

How does it function?

- Notified bodies must comply with EU legislation and standards like ISO/IEC 17065 or ISO/IEC 17021, ensuring technical competence, independence, and transparency.
- Their duties include reviewing product designs, documentation, and manufacturing processes to verify compliance with relevant laws, along with ongoing product surveillance.
- Notified bodies are required to maintain qualified personnel, established procedures, and systems for record-keeping, confidentiality, and impartiality, all regularly reviewed for consistency.

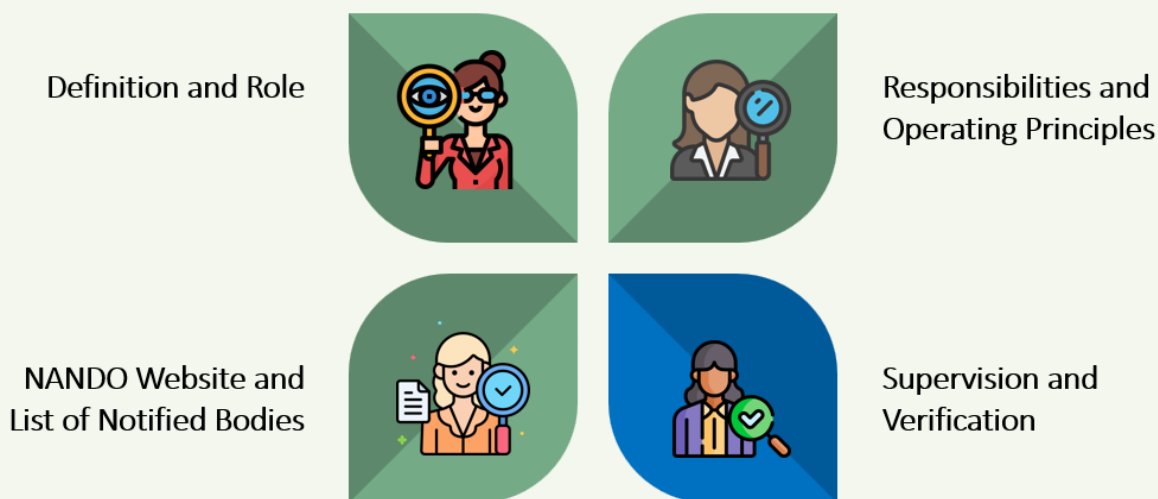
- * Clear responsibilities and principles ensure consistency, trust, and reliability in the EU's conformity assessment system.
- * Without standardized operations, disparities in product evaluations could create legal loopholes and safety risks.
- * Harmonized principles guarantee uniform expectations across all notified bodies, supporting the single market, mutual recognition, and consumer confidence in CE-marked products.

- * Future AI sandboxes should adopt a shared terminology aligned with the AI Act's Article 3 definitions for consistency.
- * Regulatory analysis must clearly outline each system's lifecycle stages (development, testing, deployment) and associated obligations.
- * Guidance should map overlapping regulations like GDPR, DSA, and sector-specific laws (e.g., medical device regulations), provide legal risk assessments, and support standardization under Article 40.





3. Supervision and Verification



What does it entail?

Why is it needed?

How does it function?

* National authorities or accreditation bodies oversee notified bodies to ensure they remain competent, impartial, and compliant with evolving EU laws.

* Supervision includes audits, performance evaluations, witness assessments, and reviews of procedures and staff qualifications to ensure consistent application of standards.

* If a notified body fails to meet expectations, it can be suspended, limited, or removed, maintaining the integrity and reliability of conformity assessments across the EU.

* Supervision and verification uphold the credibility of the conformity assessment framework, preventing errors, inconsistent standards, or bias.

* Effective oversight ensures only qualified bodies can certify products, protecting consumer safety and market fairness.

* As regulations and technologies, like AI, evolve, supervision becomes crucial to ensure notified bodies stay aligned with new requirements and best practices.

* Supervision and verification are carried out through formal audits by national accreditation authorities, ensuring compliance with ISO standards and proper application of conformity assessment procedures.

* Audits include unannounced visits, certificate reviews, and monitoring of complaint-handling mechanisms to identify deficiencies.

* If issues are found, corrective actions are required, and audit results determine whether the notified body remains listed in NANDO or faces disciplinary actions.





4. NANDO Website and List of Notified Bodies

Definition and Role



Responsibilities and
Operating Principles



NANDO Website and
List of Notified Bodies



Supervision and
Verification



What does
it entail?

Why is
it needed?

How does
it function?

* The NANDO (New Approach Notified and Designated Organisations) website is a public EU-level database listing all notified bodies authorized for conformity assessments under EU regulations.

* Each entry includes the body's ID number, name, contact details, and scope of designation (e.g., AI Act, Machinery Directive).

* NANDO is regularly updated by the European Commission and provides stakeholders with accurate, centralized information on which bodies can certify specific products, including those from EU, EFTA, and mutual recognition agreement countries.

* The NANDO website ensures transparency, traceability, and accessibility, allowing stakeholders to verify if a notified body is authorized to assess products under specific EU regulations.

* It minimizes the risk of using unqualified or fraudulent bodies, safeguarding the legal standing of conformity certifications.

* NANDO supports cross-border recognition of assessments, aiding market access across the EU and partner nations, and serves as a key reference for businesses seeking qualified notified bodies for compliance.

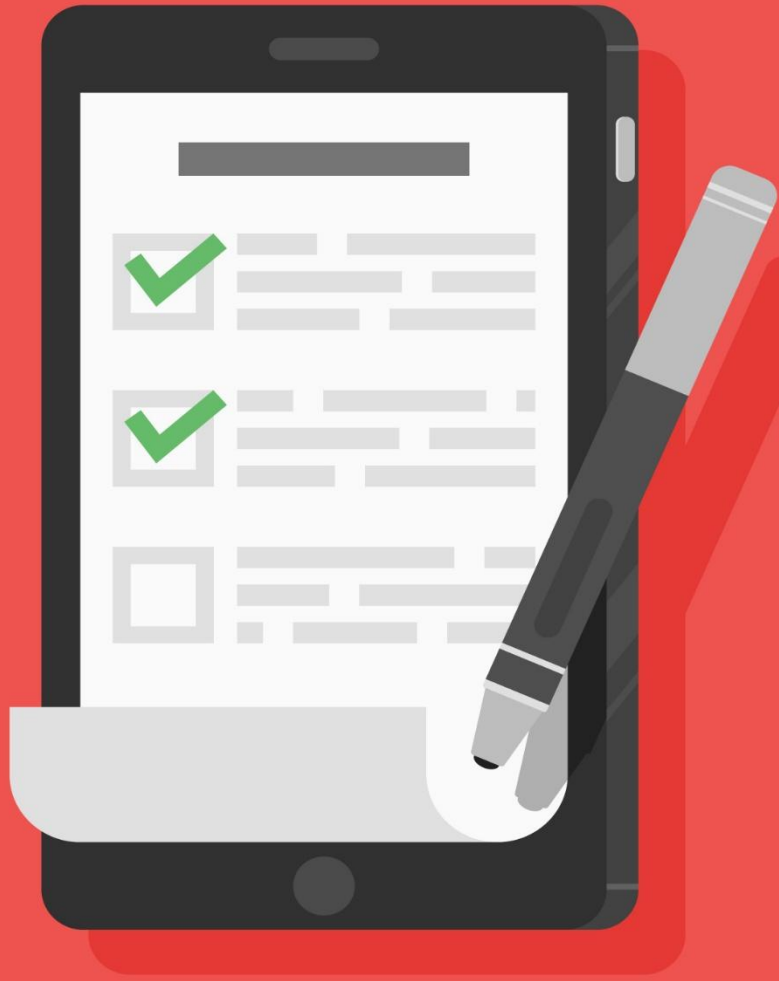
* The NANDO database is a user-friendly, searchable platform maintained by the European Commission, listing updated information on notified bodies, including new designations, suspensions, or scope changes.

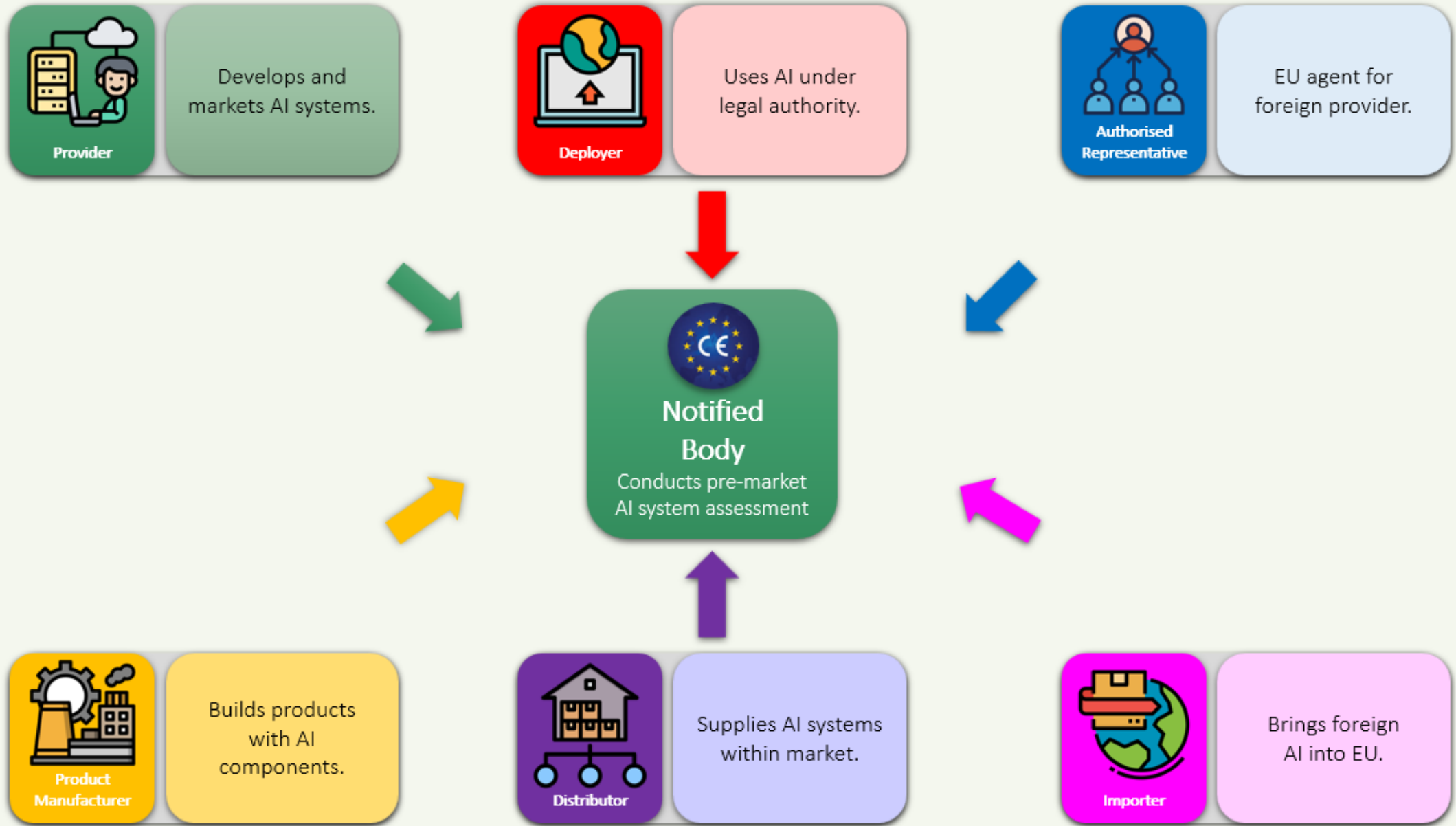
* Users can search by country, legislation, product category, or notified body number, with each listing providing links to relevant legislative references, scope definitions, and accreditation details.

* In keeping the information current and accessible, NANDO supports regulatory compliance, market surveillance, and informed decision-making across the EU product ecosystem.



Mapping Ecosystem Actors to Notified Bodies







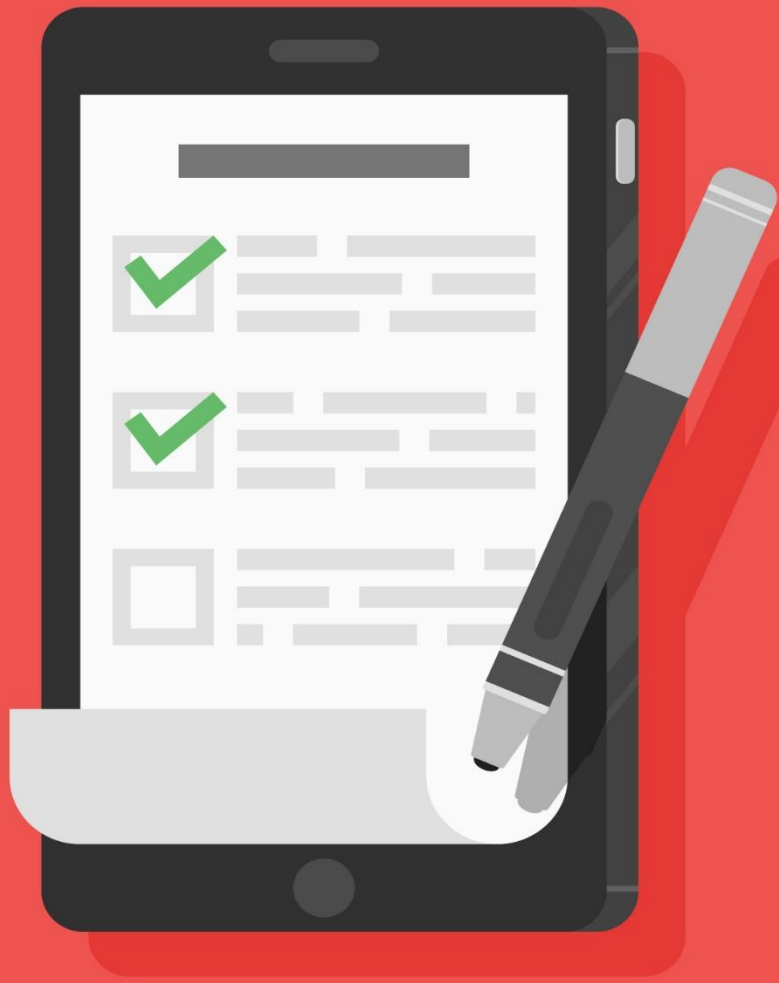
Notified Body		Actor					
Stage	Description	Provider	Deployer	Authorised Representative	Product Manufacturer	Distributor	Importer
Definition and Role	Notified bodies are organizations designated by EU countries to assess product conformity before market entry. They conduct third-party evaluations based on EU legislation. These assessments ensure products meet safety and quality standards, supporting compliance and consumer protection. The European Commission maintains a list of all designated notified bodies.	Providers must engage with notified bodies to certify that their AI systems meet EU legal standards before market entry. Their collaboration ensures third-party validation of conformity. This supports compliance, user safety, and builds trust in their product's quality, facilitating a smoother path to EU market access.	Deployers rely on upstream conformity assessments by providers or manufacturers through notified bodies. While they may not interact directly with the notified body, deployers must ensure the AI systems used have been properly evaluated, minimizing legal risk and liability for unsafe or non-compliant technology in deployment environments.	Acting on behalf of non-EU manufacturers or providers, authorised representatives coordinate with notified bodies to secure required assessments. They ensure conformity procedures are completed and documented. Their role bridges the legal gap, allowing foreign providers to meet EU market conditions through validated third-party assessments.	Manufacturers are responsible for initiating and facilitating conformity assessments through notified bodies. This process confirms that AI systems meet essential EU safety and quality standards. Their proactive engagement is critical for CE marking, legal market access, and long-term consumer confidence in the product's performance and reliability.	Distributors must verify that the products they market have passed notified body assessments. Though not involved directly in conformity procedures, they depend on upstream parties to ensure legality. If notified body involvement is required and absent, distributors may face liability and must withdraw non-compliant products from the market.	Importers must ensure products entering the EU have undergone required conformity assessments via appropriate notified bodies. They are legally responsible for checking documentation, verifying CE marking, and ensuring that products meet all applicable EU standards before market introduction, reducing the risk of non-compliance penalties.
Responsibilities and Operating Principles	Notified bodies are organizations designated by EU countries to assess product conformity before market entry. They conduct third-party evaluations	Providers are expected to cooperate fully with notified bodies during conformity assessments. This includes supplying accurate technical	Deployers must validate that the AI systems they use have been evaluated according to notified body principles. While not directly	Authorised representatives monitor that the products they represent meet the notified body's assessment requirements. They ensure that	Manufacturers must closely follow the operating principles established by notified bodies during conformity evaluations. They	Distributors are expected to understand notified bodies' responsibilities and verify that products comply accordingly. They must request and	Importers must confirm that conformity assessments by notified bodies are valid and thorough. They must hold and provide



	based on EU legislation. These assessments ensure products meet safety and quality standards, supporting compliance and consumer protection. The European Commission maintains a list of all designated notified bodies.	documentation and performing required testing. By aligning with the notified bodies' operating principles, providers help ensure their AI systems are legally compliant, safe, and trustworthy prior to deployment or commercialization.	managing conformity assessments, they share accountability if products are non-compliant. This necessitates internal verification procedures and awareness of notified bodies' standards within procurement and deployment workflows.	conformity documentation, certificates, and procedures are correctly followed and stored. Their oversight is essential to demonstrate compliance during audits or inspections by EU market surveillance authorities.	are responsible for preparing comprehensive technical files and ensuring risk assessments align with EU legal frameworks. Adherence ensures the product qualifies for CE marking and is eligible for lawful market placement.	review necessary documents when required, especially if they suspect non-compliance. Distributors risk penalties or product recalls if they distribute goods that bypass conformity procedures defined by notified bodies.	documentation upon request, demonstrating that the product meets all EU compliance standards. Their responsibilities include validating notified body certifications to avoid placing unsafe or illegal AI systems on the market.
Supervision and Verification	Notified bodies undergo regular competence checks by accreditation organizations to ensure continued compliance. EN ISO/IEC 17000 standards guide these verifications. These assessments uphold service quality, reinforce trust in conformity evaluations, and ensure notified bodies maintain	Providers benefit from knowing that notified bodies are regularly supervised and verified for competence, ensuring consistency and credibility in conformity assessments. This supports the integrity of the approval process and gives providers confidence that their products are	Deployers gain assurance from the supervision of notified bodies, trusting that conformity assessments are performed by competent and regularly evaluated organizations. This reduces the need for internal testing, supports liability protection, and ensures that deployed AI systems meet the	Authorised representatives must ensure that manufacturers or providers select notified bodies that meet ongoing supervision criteria. Their role includes verifying that assessments come from qualified entities, safeguarding the legitimacy of CE marking and product conformity within	Manufacturers must use only notified bodies that pass regular verification for competence, guided by standards like ISO/IEC 42001. Choosing a supervised, credible body ensures accurate evaluations, market access, and reduces the risk of product rejection, regulatory	Distributors rely on the supervised status of notified bodies to confirm that assessments are trustworthy. They must ensure upstream manufacturers or importers used verified entities, especially for high-risk AI products, as faulty assessments can lead to distributor liability or removal from the EU market.	Importers depend on the supervision and accreditation of notified bodies to ensure conformity procedures are valid. They must perform due diligence to confirm notified bodies are currently competent, which strengthens product credibility and avoids legal challenges related to substandard or



	high operational standards required by EU product legislation and safety requirements.	assessed to current regulatory and quality standards.	high standards expected within the EU.	the EU's regulated environment.	violations, or costly re-certification.		uncertified AI system imports.
NANDO Website and List of Notified Bodies	The NANDO website provides a searchable, up-to-date list of notified bodies, including their ID numbers and authorized tasks. It covers EU, EFTA, and partner countries with MRAs or PECAs. NANDO helps businesses identify suitable notified bodies for specific legislative requirements, ensuring clarity and transparency across jurisdictions.	Providers use the NANDO website to identify and contact notified bodies authorized for specific types of conformity assessment. It helps them match their AI system with the correct body under relevant EU legislation, ensuring that their product receives the right type of conformity evaluation.	Deployers may consult the NANDO database to confirm that conformity was issued by a legitimate, competent notified body. This helps in supplier validation, especially for high-risk AI systems, ensuring that the deployer uses only products assessed under proper EU-recognized procedures.	Authorised representatives use the NANDO list to verify notified bodies' accreditation status and scope of designation. This ensures that any conformity certificate obtained aligns with the legislative requirements for the product, maintaining their client's compliance with EU regulatory obligations.	Manufacturers rely on the NANDO website to select appropriate notified bodies for their products. They check that the notified body has the correct scope under EU legislation and is recognized in the relevant country, ensuring conformity assessments are valid and respected across EU and partner markets.	Distributors consult the NANDO list to verify that a product's notified body is officially designated and qualified to perform conformity assessments. This check reduces the risk of selling non-compliant products and protects the distributor from potential regulatory issues or product liability.	Importers use the NANDO site to validate that AI systems or components imported into the EU have been certified by an authorized and appropriately scoped notified body. This step helps ensure legal market entry and provides traceability in case of audit or investigation.



Calls to Action



Align Internal Compliance Procedures with EU Standards

Enterprises must ensure that their internal compliance frameworks and documentation align with the specific requirements assessed by notified bodies, based on relevant EU legislation. Regular training on EU conformity standards should be provided to internal teams to support consistency and preparedness



Utilise the NANDO Database for Strategic Partner Selection

Enterprises should actively use the NANDO website to select notified bodies with relevant scope, expertise, and jurisdictional reach. Strategic selection based on the NANDO database ensures legal certainty, improves efficiency in conformity assessments, and supports better alignment with market access strategies.



Engage Accredited Notified Bodies Early in Product Development

Enterprises should identify and consult appropriate notified bodies at the early stages of product design to ensure that conformity assessment requirements are fully understood and integrated. Early engagement reduces risks of non-compliance and facilitates smoother market entry.



Train Staff on Conformity Assessment Procedures Pre-Deployment

Training of staff requires cross-functional stakeholder input. Use both internal and external training resources to construct, execute, and manage training programmes to cover salient parts of the Notified Body engagement process. This complements works under Art.4 (AI Literacy).





Conclusion

The role of notified bodies under the EU AI Act represents a transformative shift in how high-risk AI systems are assessed and governed, moving toward a more structured, transparent, and compliance-driven approach. By ensuring that AI products meet the necessary legal requirements, notified bodies play a crucial part in translating the AI Act's legal obligations into actionable steps, reducing uncertainty for innovators while ensuring regulatory accountability and user protection.

Throughout this report, we have emphasized the critical role that notified bodies play in the conformity assessment process. Their independence and expertise, provided competence criteria is met, are key in providing technical oversight, ensuring that AI systems comply with EU regulations, and promoting the development of safer, more transparent AI technologies. When effectively engaged, notified bodies facilitate alignment with the AI Act's requirements, including data governance, human oversight, and lifecycle risk management, while fostering trust and confidence in AI systems across the EU.

However, the successful implementation of notified body assessments requires more than just a regulatory framework—it necessitates operational readiness and robust execution.

Stakeholders, including AI firms, manufacturers, and regulators, must adapt their internal processes and governance models to align with the AI Act's expectations, particularly in relation to high-risk AI systems. Early planning, regulatory guidance, and effective collaboration among all parties are essential to ensure smooth conformity assessment procedures.

Despite these challenges, proactive organizations and regulatory authorities are already demonstrating that engaging with notified bodies can streamline compliance, improve AI system quality, and facilitate faster market entry. As AI becomes increasingly integral across sectors—from healthcare and finance to public administration and civic infrastructure—working with notified bodies ensures that AI systems are not only innovative but also lawful, ethical, and aligned with fundamental rights.

In conclusion, the involvement of notified bodies in the AI conformity process under the AI Act sets a crucial precedent for AI governance, helping shape future revisions of the Act and establishing a global benchmark for responsible and legally compliant AI development.





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